

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
HECTOR ORTIZ,

Plaintiff,

-against-

THE CITY OF NEW YORK and NADINE NOA,

Defendants.
-----X**SUMMONS**

Index No.:

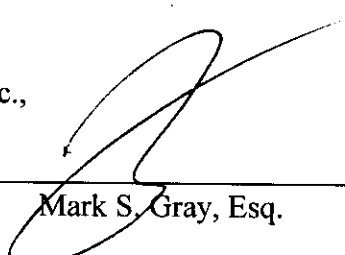
Plaintiff designates
New York County
as place of trialBasis of Venue:
CPLR 503(c)

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally served to you within the State of New York); and in case of your failure to appear or serve a demand for a complaint within the applicable time limitation stated above, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
November 5, 2014

Yours, etc.,

By: 

Mark S. Gray, Esq.

Law Offices of Mark S. Gray
Attorneys for Plaintiff
251 West 93rd Street
New York, New York 10025
212.537.7000TO: THE CITY OF NEW YORK
City of New York Comptroller
One Centre Street
New York, NY 10007TO: The City of New York
City of New York Comptroller
100 Church Street
New York, NY 10007TO: NADINE NOA
One Police Plaza
New York, NY 10004TO: NADINE NOA
4295 Broadway
New York, NY 10033

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
HECTOR ORTIZ,

Plaintiff,

VERIFIED COMPLAINT

Index No.:

-against-

THE CITY OF NEW YORK and NADINE NOA,

Defendants.
-----X

Plaintiff, by his attorney, Law Offices of Mark S. Gray, complaining of the defendants,
alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. Plaintiff HECTOR ORTIZ is a natural person residing in the County and State of New York.
2. Defendant THE CITY OF NEW YORK is a municipality incorporated under the laws of the State of New York.
3. Defendant NADINE NOA is a natural person residing in the County and State of New York.
4. At all times relevant hereto, plaintiff was the operator of a 1991 Toyota motor vehicle bearing New York State license plate number FBX1151.
5. At all times relevant hereto, defendant, THE CITY OF NEW YORK, was the titled owner of a 2007 Chevy motor vehicle (police car) bearing New York license plate 4491.

6. At all times relevant hereto, defendant, THE CITY OF NEW YORK, leased a 2007 Chevy motor vehicle (police car) bearing New York license plate 4491.

7. At all times relevant hereto, defendant, NADINE NOA, was the operator of the aforementioned 2007 Chevy motor vehicle (police car) bearing New York license plate 4491.

8. At all times relevant hereto, upon information and belief, the defendant, NADINE NOA, operated the aforementioned 2007 Chevy motor vehicle (police car) with the express and/or implied consent, permission or knowledge of the defendant THE CITY OF NEW YORK.

9. At all times relevant hereto, upon information and belief, the defendant NADINE NOA was operating the aforementioned 2007 Chevy motor vehicle (police car) in the course of and as part of his employment with the defendant THE CITY OF NEW YORK.

10. That at all times hereinafter mentioned, St. Nicholas Avenue at or near its intersection with West 177th Street, located in the County and State of New York, was and still is a public highway and thoroughfare and was the situs of the accident herein.

11. On the 7th day of August, 2013 at approximately 10:20 p.m., plaintiff, HECTOR ORTIZ, properly belted and restrained, was driving the aforementioned 1991 Toyota motor vehicle on St. Nicholas Avenue at or near its intersection with West 177th Street, located in the County and State of New York

12. Plaintiff's vehicle was lawfully traveling at the aforementioned location when the vehicle operated by defendant NADINE NOA struck plaintiff's vehicle.

13. The accident and resulting injuries were caused by the negligent, wanton, reckless and careless acts of the defendants, and through no fault of the plaintiff.

14. As a result of the foregoing, plaintiff sustained serious injuries, as defined in Section 5102(a) of the Insurance Law.

15. The defendants were negligent, wanton, reckless and careless in causing and/or permitting their motor vehicles to come into contact with the plaintiff's motor vehicle; in failing to take those steps necessary to avoid the contingency which occurred herein; in failing to keep their motor vehicle under proper control; in failing to see what there is to be seen; in failing to operate their motor vehicle in a manner and at a speed that was reasonable and proper under the prevailing traffic conditions; in failing to operate the braking and acceleration devices of their respective motor vehicles under the circumstances of the roadway where the accident occurred; in failing to keep a proper lookout; in failing to stop and/or slow down; in violating the rules of the road; in failing to observe that degree of caution, prudence and care which was reasonable and proper under the controlling circumstances; in acting with reckless disregard for the safety of others; in failing to keep alert and attentive; in failing to yield the right of way in negligently entering the path of another motor vehicle; in failing to properly apply brakes; in failing to sound the horn; in failing to operate the vehicle as a reasonably prudent person would; in failing to exercise control over their vehicle; and in violating the rules, regulations, statutes and ordinances relative to the operation of motor vehicles on public highways of the State of New York.

16. The limited liability provisions of the C.P.L.R. 1601 do not apply pursuant to one or more of the exceptions of C.P.L.R. 1602.

17. That by reason of the foregoing, the plaintiff was caused to sustain severe and serious personal injuries to his mind and body, some of which, upon information and belief, are permanent with permanent effects of pain, disability, disfigurement and loss of body function.

18. That plaintiff sustained a serious injury, as defined in subdivision four (4) Section 5102 of the Insurance Law of the State of New York.

19. Upon information and belief, a Notice of Claim, pursuant to General Municipal Law Section 50-e was served on the defendant THE CITY OF NEW YORK on or about October 16, 2013.

20. That a hearing, pursuant to General Municipal Law Section 50-h was conducted on or about August 20, 2014.

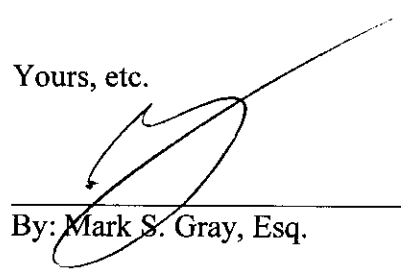
21. That more than 30 days have passed since the filing and serving of the Notice of Claim, and that this claim has not been paid or adjusted by the defendant THE CITY OF NEW YORK.

20. By reason of the foregoing, the plaintiff has been damaged in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

WHEREFORE, plaintiff demands judgment against the defendants:

- A. On the First Cause of Action, in a sum of money having a present value that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter, together with the costs and disbursements of the action.
- B. For such other and further relief as this Court deems just and proper.

Yours, etc.

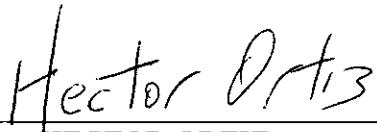

By: Mark S. Gray, Esq.

LAW OFFICES OF MARK S. GRAY
Attorneys for Plaintiff
251 West 93rd Street
New York, New York 10025
212-537-7000

VERIFICATION

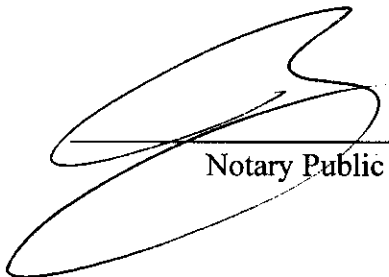
STATE OF NEW YORK }
 } ss.:
COUNTY OF NEW YORK }

I am the plaintiff in the within action. I have read the foregoing Summons and Verified Complaint and know the contents thereof. The same is true to my knowledge, except as to the matters stated to be alleged upon information and belief, and that as to those matters I believe them to be true.



HECTOR ORTIZ

Subscribed and Sworn to
before me this November 5, 2014



Notary Public

MARK STUART GRAY
NOTARY PUBLIC STATE OF NEW YORK
NO. 02GR6025681
QUALIFIED IN NEW YORK COUNTY
COMM. EXPIRES JULY 1, 2015

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

HECTOR ORTIZ,

Plaintiff,

-against-

THE CITY OF NEW YORK and NADINE NOA,

Defendants.

SUMMONS & VERIFIED COMPLAINT

LAW OFFICES OF MARK S. GRAY

Attorneys for Plaintiff
251 WEST 93rd STREET
NEW YORK, NEW YORK 10025
TEL. (212) 537-7000
FAX (212) 537-8800

CERTIFICATION: To the best of the undersigned's knowledge, information and belief formed after an inquiry reasonable under the circumstances, the within document(s) and contentions contained herein are not frivolous as defined in 22 NYCRR§130-1.1-a.

Mark S. Gray, Esq.

Madam/Sir: Please take notice

NOTICE OF ENTRY that the within is a (certified) true copy of a _____ duly entered in
the office of the clerk of the within named Court on _____

NOTICE OF SETTLEMENT that a(n) _____ of which the within is a true copy will
be presented for settlement to the HON. _____ of the within named Court, at
on the _____ day of _____ 2014.
Dated: _____

Yours, etc.
MARK S. GRAY
Attorney at Law